



WHY COUNSEL MUST NEVER AGREE TO DIVERSION PROGRAMS OR AN UP- FRONT PLEA WITHOUT RIAC ADVICE

Until you receive advice on the immigration consequences of your client's case, you can **never** assume it is safe for a non-citizen client to either:

1. Enter into any kind of diversion program;
2. Acknowledge any involvement with drugs; or
3. Enter an up-front plea on the basis that they will be allowed to re-plea at a later date.

These actions can all have permanent immigration consequences - regardless of how the criminal court treats what happened and regardless of what the ultimate disposition of the case is.

Unless you obtain an advisal on immigration consequences, it is never safe to allow your client to proceed - because entry into a diversion program and/or entering an up-front plea:

- Will **constitute a conviction for immigration purposes** - even if the court later vacates that plea, even if the court later seals or expunges the record;
- (If your client enters into a substance abuse program): **could make them deportable for being a drug abuser or addict** (even if they are not convicted of a drug crime);
- (If your client enters into a domestic violence program): **could make them deportable for having violated an order of protection** - including where only non-violent acts such as violating the stay away portion of an OP are involved;
- **Could subject them to arrest by ICE** - which would mean they cannot complete any diversion program or agreed terms.

**EVEN IF YOU ARE GIVEN AN AMAZING, TIME-SENSITIVE
OFFER: ALWAYS CALL RIAC FIRST!**